Human Rights Policy

The Green Party is committed to ensuring that everyone's human rights are upheld. We will honour Te Tiriti o Waitangi by strengthening the rights of Tāngata Whenua through a te ao Māori lens. We will safeguard the rights of future generations. We will extend our laws to cover more human rights, sign up to more international treaties, and give the courts and human rights institutions more power to uphold human rights.

Vision

Everyone's rights are safeguarded and actively upheld so that everyone can participate equitably.

Values and Principles

Decisions relating to human rights must uphold the following values and principles:

- *Honour Te Tiriti o Waitangi*: Tino rangatiratanga must be fundamental to the human rights framework of Aotearoa New Zealand and be upheld at all levels.
- *Ecological Wisdom*: Equitable access to a healthy environment is a fundamental human right and essential to the rights of future generations.
- *Social Responsibility*: Everyone has a right to an adequate standard of living, and to take part in social, economic and cultural activities.
- *Appropriate Decision*-Making: Everyone must be empowered to exercise their democratic rights. Everyone has a right to live free from discrimination and groups that currently face structural marginalisation have a right to equity.
- *Non-Violence*: Diversity must be not only celebrated, but actively protected. Everyone must be able to live free from discrimination, fear, violence and abuse.
- *International Cooperation*: Aotearoa New Zealand must use our resources and voice to support the human rights of other people and nations.

Strategic Priorities

The Green Party's strategic goals include:

> *"As a Party we strive to create a more connected, compassionate and equitable Aotearoa, free from structural biases that discriminate against groups and individuals."*

Actions in this policy that will help achieve this include:

- Establishing a human rights framework that enables human rights issues to be resolved appropriately and implements the United Nations Declaration on the Rights of Indigenous Peoples (UNDRIP), informed by Tikanga Māori, Matike Mai, Mātauranga Māori, He Whakaputanga, and Te Tiriti o Waitangi. (1.1.3)
- Developing enduring legal frameworks that explicitly protect the rights of future generations. (2.1.3)

- Implementing the recommendations of the Royal Commission on the Christchurch Mosque Attacks regarding hate speech and hate crimes, and extending hate speech laws to cover religious or ethical belief, disability, gender (including gender identity and gender expression), sexual orientation and sex characteristics. (3.1.1)
- Extending the prohibited grounds of discrimination in the Human Rights Act to cover caste, union activity, appearance, genetic information, gender identity, gender expression, sex characteristics, and all sexual orientations, and reviewing the exceptions to the prohibitions on discrimination to ensure they do not harm or exclude marginalised groups. (3.1.2)
- Extending the New Zealand Bill of Rights Act to cover other human rights recognised in international human rights instruments, such as social, economic and cultural rights, the right to privacy, the right to self-determination and children's rights, and ensuring that our laws and practices are consistent with them. (3.3.3)
- Making the New Zealand Bill of Rights Act supreme law and entrenching it. (3.4.3)

Connected Policies

All Green Party policies apply the concept of human rights, including upholding the rights of tangata whenua under Te Tiriti o Waitangi. Our Workforce Policy upholds the rights of workers. Our Immigration Policy upholds the rights of refugees and migrants. Our Justice Policy upholds the right to justice and the rights of detainees. Our policy treats access to Housing and Health as human rights. Our Governance Policy creates robust and effective legal rights for the natural world. Our Disability Policy upholds the rights of disabled people. Other policies uphold the rights of Children, Women, the Rainbow community and Tagata Moana.

Policy Positions

1. Individual Rights and Te Ao Māori

Issues

The current legalistic view of human rights is a colonial one that focuses on individual civil and political rights. It does not recognise interconnectedness, collective rights, or indigenous rights, and does not balance rights with responsibilities. This undermines the rights of Tāngata Whenua upheld by Te Tiriti o Waitangi and conflicts with Tikanga and Mātauranga Māori.

Actions

1.1. Ensure that Māori communities are able to exercise their collective rights, including by:

1.1.1. Establishing a full-time Māori Rights Commissioner on the Human Rights Commission.

1.1.2. Amending or opposing any legislation that is found to be inconsistent with Te Tiriti o Waitangi by the Waitangi Tribunal.

1.1.3. Establishing a human rights framework that enables human rights issues to be resolved appropriately and implements the United Nations Declaration on the Rights of Indigenous Peoples (UNDRIP), informed by Tikanga Māori, Matike Mai, Mātauranga Māori, He Whakaputanga and Te Tiriti o Waitangi.

1.1.4. Resourcing the Waitangi Tribunal to reach consensus on the resolution of, and restitution for, all outstanding breaches of Te Tiriti o Waitangi, broaden its binding decision-making authority, and implement its recommendations to date.

2. Rights of Future Generations

Issues

Human activity is undermining the foundations that allow life on Earth to thrive. Climate change, loss of biodiversity, and its other impacts are disrupting earth systems. This undermines the rights of future generations of all species, including humans, to a liveable planet.

Actions

2.1. Ensure that the human rights of future generations are protected under the law, including by:

2.1.1. Adding a right to a clean, healthy, and sustainable environment to the New Zealand Bill of Rights Act.

2.1.2. Developing enduring legal frameworks that explicitly protect the rights of future generations.

3. Intersectionality and Privilege

Issues

Human rights are not adequately protected by our laws and institutions. The rights of some groups of people are undermined by many systems that are designed for or benefitting the most privileged among us. Moreover, access to the resources necessary for legal defence of these rights is not universally accessible.

Actions

3.1. Through human rights instruments, ensure equality for all groups and people, without discrimination and prejudice, including by:

3.1.1. Implementing the recommendations of the Royal Commission on the Christchurch Mosque Attacks regarding hate speech and hate crimes, and extending hate speech laws to cover religious or ethical belief, disability, gender (including gender identity and gender expression), sexual orientation and sex characteristics.

3.1.2. Extending the prohibited grounds of discrimination in the Human Rights Act to cover caste, union activity, appearance, genetic information, gender identity, gender expression, sex characteristics, and all sexual orientations, and reviewing the exceptions to the prohibitions on discrimination to ensure they do not harm or exclude marginalised groups.

3.1.3. Reviewing all laws to identify and remove any discrimination or human rights breaches.

3.1.4. Ensuring that all new laws do not discriminate or constitute a human rights breach.

3.2. Ensure that remedies for human rights breaches are readily accessible to all, including by:

3.2.1. Expanding the availability of damages and other redress for human rights breaches

3.2.2. Requiring all government agencies to publish regular, audited reports of indicators which assess the human rights impacts of their activities and implement programmes that remedy them

3.2.3. Expanding the functions and powers of the Human Rights Commission to ensure that it can address all human rights issues.

3.3. Ensure that all human rights are recognised and protected effectively by our laws, including by:

3.3.1. Amending or opposing any legislation that is found to be inconsistent with the New Zealand Bill of Rights Act by the Attorney-General or the courts.

3.3.2. Ratifying international human rights treaties to which New Zealand is currently not a party and removing New Zealand's reservations to international human rights treaties;

3.3.3. Extending the New Zealand Bill of Rights Act to cover other human rights recognised in international human rights instruments, such as social, economic and cultural rights, the right to privacy, the right to self-determination and children's rights.

3.4. Ensure that human rights institutions protect everyone's rights effectively and independently of government, including by:

3.4.1. Ensuring that human rights institutions have sufficient funding to be effective and prompt in their roles;

3.4.2. Making Human Rights Commissioners Officers of Parliament, appointed by Parliament rather than by Ministers;

3.4.3. Making the New Zealand Bill of Rights Act supreme law and entrenching it.

3.5. Ensure that vulnerable communities are assisted to realise their human rights, including by:

3.5.1. Empowering the Ombudsman to close places of detention for failure to correct repeated findings of non-compliance with inspections.

3.5.2. Resourcing and supporting community organisations that advocate for human rights or support people to raise human rights concerns.

3.5.3. Teaching Human Rights in schools.

3.6. Ensure that Aotearoa New Zealand respects the human rights of everyone everywhere, including by:

3.6.1. Amending the New Zealand Bill of Rights Act to explicitly apply to the actions of the New Zealand Government when it acts overseas.